

		taken, as the interrogatory concerns a single subject. Further, Defendant has not submitted evidence to support its relevance argument. <u>Interrogatory Nos. 37 and 39: Granted.</u> Plaintiff’s articulated sufficient relevance. The remainder of the objections are overruled for the reasons stated regarding No. 36. <u>Interrogatory Nos. 40 and 41: Granted.</u> The interrogatories are relevant and each concerns a single subject. <u>Interrogatory No. 42: Granted</u> for the reasons discussed above regarding No. 32. <u>Interrogatory Nos. 43-44: Granted.</u> Defendant’s objections that the interrogatory contains subparts and is not full and complete in and of itself are overruled. <u>Interrogatory No. 46: Granted in part.</u> The time period shall be limited to February 13, 2019 to the present, which is a five year lookback period from the February 13, 2024 date of the incident alleged in the Complaint. (Compl. ¶ 1.) Records prior to that are of tenuous relevance. <u>Interrogatory No. 50: Denied.</u> Defendant’s relevance objection is sustained. <u>Interrogatory No. 52: Granted.</u> Defendant’s objections that the interrogatory contains subparts and is not full and complete in and of itself are overruled. <u>Interrogatory No. 53: Granted in part.</u> The interrogatory shall be limited to incidents that occurred in common areas. Incidents that occurred in private areas are excluded. <u>Interrogatory Nos. 54 and 55: Denied.</u> These interrogatories contain multiple subparts that do not concern a single subject and are compound. <u>Interrogatory No. 56: Granted.</u> Defendant’s objections that the interrogatories contain subparts, are compound and are not full and complete in and of themselves are overruled. The subparts relate to a single subject. <u>Interrogatory Nos. 57-63, 66-67 and 69-70: Denied.</u> These interrogatories contain multiple subparts that do not concern a single subject and are compound. Both parties’ <u>requests for sanctions</u> are DENIED. <i>Defendant is to provide <u>supplemental responses</u> within <u>20 days</u> of this ruling.</i> Plaintiff to give notice.
8.	30-2025-01458151 Giles vs. Cervantes	1. Motion to Consolidate Defendants, Peter Sandoval Cervantes and Aliso Viejo Towing & Recovery Inc., move for an order consolidating the following cases: <i>Jovan Derrick Giles v. Peter Sandoval Cervantes and Aliso Viejo Towing Recovery</i>, case no. 30-2025-01458151-CU-PA-CJC and <i>Carolle Gonzales v. Aliso Viejo Towing and Peter Sandoval Cervantes; Sieglinge Hite</i>, case no. 30-2025-014899339-CU-PA-NJC.

A motion to consolidate must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated and must have a proof of service filed as part of the motion. (California Rules of Court, rule 3.350(a)(2)(B)-(C).) A notice of continuance was properly served on all attorneys of record in all of the cases sought to be consolidated. (See ROA 68.)

The motion is **unopposed**.

Defendants' motion to consolidate complies with the procedural requirements set forth in California Rules of Court, rule 3.350.

Code of Civil Procedure § 1048(a) provides: "When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions, it may order all the actions consolidated, and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." "Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only. [Citation.]" (*Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147-1149.)

The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-79.)

Here, it appears that Defendants seek a complete consolidation of two related cases: *Jovan Derrick Giles v. Peter Sandoval Cervantes and Aliso Viejo Towing Recovery*, case no. 30-2025-01458151-CU-PA-CJC and *Carolle Gonzales v. Aliso Viejo Towing and Peter Sandoval Cervantes; Sieglings Hite*, case no. 30-2025-014899339-CU-PA-NJC.

Defendants' counsel provides that these two related cases both arise out of the same October 27, 2023, incident in which Plaintiffs claim to have sustained injuries after a rear end accident on the I-5 Northbound near Alicia Parkway, such that there are common issues of law and fact. (Declaration of Nicholas Maranesi, ¶¶ 3, 7.)

This being said, the Court notes that the Complaint alleges that the subject accident occurred on or about August 16, 2023, not October 27, 2023 as asserted in the motion. (See Complaint, ¶¶ 1, 7, 17.) Thus, there is some discrepancy as to the date of the incident/accident.

Nevertheless, the motion is unopposed and Defendants' provide evidence that both cases arise out of the same incident and involve common questions of law and fact as to the liability of Defendants to each plaintiff such that a complete consolidation of the cases would enhance judicial efficiency and avoid the danger of inconsistent adjudications. Defendants' motion to consolidate is **GRANTED**.

Giles v. Cervantes, case no. 30-2025-01458151-CU-PA-CJC is the lead case. (California Rules of Court, rule 3.350(b).)

Moving Defendants to give notice.